IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 101

COMP.APPL/51(CH)2024
And
C.A.(CAA)/4/Chd/HP/2024
(Ist Motion)

IN THE MATTER OF:
Inox Wind Energy Limited ... Petitioner

Under Section: 230-232, CA 2013
Rule: 11 of NCLT, 2016

Order delivered on 07.03.2024

CORAM:
SHRI. RAHUL PRASAD BHATNAGAR HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:

For the Petitioner	**:**	Mr. Anand Chhibbar, Sr. Advocate along with Mr. Dhritiman Bhattacharya, Mr. Rajat Khanna, Advocates.
For the Applicant in COMP.APPL/51(CH) 2024- Dhiman Industrial Fabricators & Designer.	**:**	Mr. Nahush Jain, Advocate
For the Intervener-Operational Creditor-Metalfab Hightech Pvt. Ltd.	**:**	Mr. Manish Jain with Ms. Divya Sharma, Advocates
For the Objector-Suvarna Fibrotech Pvt. Ltd.	**:**	Mr. Vishav Bharti Gupta, Advocate

ORDER

COMP.APPL/51(CH)2024 & C.A.(CAA)/4/Chd/HP/2024

Vakalatnama has been filed by Mr. Rajat Khanna, Advocate for petitioner vide Diary No. 00142/1 dated 02.02.2024 and the compliance affidavit has been filed by applicant for company No.1 vide Diary No. 00142/3

dated 14.02.2024 and for company No.2 vide Diary No. 00142/4 dated 14.02.2024. The same are taken on record.

Mr. Nahush Jain has filed CA No.51/2024 raising some objections. He is directed to file the compendium of judgement, if any, in support of the maintainability of its CA No. 51/2024. Similarly, the objections have been raised by Mr. Vishav Bharti Gupta, Advocate appeared for the objector and Mr. Manish Jain, Advocate appeared for the Intervenor, that they are also the Creditors of the Respondent Company No.2 but they have not been reflected as the Creditors in the List of Creditors.

Heard. Order reserved.

Sd/-
(RAHUL PRASAD BHATNAGAR)
HON'BLE MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

March 7, 2024
Mukta